

GAUTAM KUMAR SHARMA, ADVOCATE

105, Amar Vijay Complex, Near Hotel Mansingh, Sansar Chandra Road, Jaipur – 302001
Contact: 0141-5102318, 98281-26469, // E-mail: gautamsharma.2008@rediffmail.com

LEGAL SCRUTINY REPORT

Ref No.: **March-06**

Status:-**Positive**

Lead No. **HLSA000CAE6A**

Type of Case – **HL Purchase**

Dated: **12/03/2025**

To

**Piramal Capital & Housing Finance Limited,
Manu Upasana Tower, Jaipur**

Dear Sir/Madam,

Sub: Legal Scrutiny Report in respect of the loan application of **Mr. Rahul**
(Name of the Borrower)

As desired by you vide the above referred letter, I/we are furnishing hereunder the legal scrutiny report in respect of the property.

PART I:

1	Name of the Borrower	Mr. Rahul (Applicant) Mrs. Roshan Khatun (Co-Applicant)
2	Description/Address of the Property	Plot No. 147A, Situated at Chandra Shekhar Ki Bagichi, Masjid Road, Nahari K Naka, Shashtri Nagar Distt. Jaipur, Measuring Area 66.66 Sq. Yds
3	Four boundaries of the property (Plot)	North -Other Property South - Other Property East - Road West - Other Property
4	Name of Current Owners(s)	Mr. Mohammed Javed
5	Nature/Status of Property	Non Transferable Lease Deed/Patta (issued by Nagar Nigam, Jaipur)

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6	Permitted land usage as per the documents	Residential
7	Purpose of loan and Type of Transaction	HL Purchase

PART II

List of Documents submitted before me/us for Scrutiny and Legal Opinion:
(Specify the document share Original or Xerox)

1. Photocopy of Registered **Patta 1163 dated 25/03/2013** issued by **Nagar Nigam, Jaipur** in favour of **Mr. Hanif** with Site Plan for the said property, Which is register with Sub Registrar-**Jaipur V** at Book No. 1, Vol. 650, Page 100, S. No. 2013397008567, and add. Book No. 1, Vol. 2598, Page no. 490-495 on dated 04/04/2013.
2. Photocopy of Registered **Released Deed dated 25/03/2013** executed by **Mr. Mohammed Sharif, Mr. Shafik, Mr. Mohammed Idrish & Mrs. Rihyan** in favour of **Mr. Mohammed Javed** for the said property, Which is register with Sub Registrar-**Jaipur V** at Book No. 1, Vol. 1570, Page 6, S. No. 202503019104738, and add. Book No. 1, Vol. 6276, Page no. 718-731 on dated 24/03/2025.

Record Submitted in JDA	NA
90-B/A	NA
Map Approved	NA
Name in JDA membership list	NA
Camp Held	NA
Court Case	NA
Society Under is Liquidation List	NA
Society Under is Regular List	NA
Society Under is Rejected List	NA

PART III

FLOW OF TITLE OF PROPERTY-(HISTORY OF TITLE)

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That the said property was allotted by Nagar Nigam, Jaipur in favour of **Mr. Hanif** vide **Patta 1163** dated **25/03/2013** in respect of the said property. Then **Mr. Hanif** was passed away and become the legal heirs **Mr. Mohammed Sharif, Mr. Shafik, Mr. Mohammed Idrish, Mr. Mohammed Javed & Mrs. Rihyan**. Then after Registered Released Deed dated **25/03/2013** executed by **Mr. Mohammed Sharif, Mr. Shafik, Mr. Mohammed Idrish & Mrs. Rihyan** in favour of **Mr. Mohammed Javed** for the said property. Now **Mr. Mohammed Javed** has entered into sale agreement with **Mrs. Roshan Khatun W/o Mr. Rahul**. On execution of sale deed **Mrs. Roshan Khatun W/o Mr. Rahul** will become the owner of the in respect of the said property.

PART IV

EVIDENCE OF TITLE OF PROPERTY

PART V

OTHER PROVISIONS:

5.1. Whether provisions of Urban Land Ceiling Act are applicable?

NO

5.2. Whether property to be given as security is subject to any minor's claim/share?

NO

5.3 Whether the property is affected by any revenue and tenancy regulations?

N/A

5.4. Whether the user land has been converted into Non-Agricultural for Residential use by the Order of the competent Authority?

Nagar Nigam

5.5. Whether up to date tax /Land Revenue has been paid on the property.

N/A

5.6. Whether all documents for last 13 years (as per the company policy) have been scrutinized?

YES

5.7. Whether required documents are available for creating mortgage?

YES

5.8. Whether all previous owners had the right/ competency to transfer the

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property?

YES

5.9. Whether proposed mortgage by deposit of title deeds is possible?

YES

5.10. Whether the property has been transferred /to be transferred by a POA holder of the original and owner in favor of the loan Applicant?

N/A

5.11. Whether POA holder of original and owner has/ had authority under POA.

N/A

5.12. Whether the said POA as recorded in 5.11 is registered?

N/A

5.13. What is the tenure of the land leased?

Property is Lease Hold by Nagar Nigam

5.14. Whether the land is Adivasi (Tribal) Land?

NO

5.15. Whether the land/property is joint family property?

NO

5.16. Is the land/ property/ House is subject to any reservations/ acquisitions/ requisitions?

NO

5.17. Whether Search Report is obtained and submitted?

Search Report Details. **0102125993 & 0103058184**

Search Conducted Years:-**2013-2025 & 2025(13 Year)**

Name of the Advocate:-**Gautam Kumar Sharma**

Search Report Date:-**12/03/2025 & 28/03/2025**

5.18. Whether EC is obtained?

Where applicable

YES/NO

EC Details

No. of Years EC Obtained

Any Encumbrance to Specify

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0.00 EC Applied by

5.19. Whether Builder is a Private/Limited Company?

ROC Search Report Submitted/Carried Out Any Charge/Mortgage is created on the Project/ Property/House/Apartment If Mortgage/Charged, Name of the Bank/FI Whether NOC/Release Letter Obtained or Not

PARTVI:- CERTIFICATE:-

In view of the foregoing, I/We certify that the title deeds intended to be deposited, relating to the property and offered as security by way of equitable mortgage and the documents of title referred to above are perfect evidence of the title and that if the said equitable mortgage is created in the manner required by law, it would satisfy the requirements of creation of equitable mortgage.

I/We further certify that **Mrs. Roshan Khatun W/o Mr. Rahul** has/would derive valid, clear, marketable and unencumbered title in the property/is stated above and competent to create the mortgage in favour of the **Piramal Capital & Housing Finance Ltd.**, free from all encumbrances.

The mortgage if created will be available to PCHFL for the liability of the intending Borrower **Mrs. Roshan Khatun**. We further certify that the subject property is enforceable under SARFAESI Act 2002 by the Lender

11. Steps/Documents required for creation of equitable mortgage:

I. DOCUMENTS TO BE COLLECTED BY PIRAMAL CAPITAL & HOUSING FINANCE LIMITED FOR CREATION OF EQUITABLE MORTGAGE OF THE SAID PROPERTY PRIOR TO THE DISBURSEMENT.

1. Photocopy of Registered **Patta 1163 dated 25/03/2013** issued by **Nagar Nigam, Jaipur** in favour of **Mr. Hanif** with Site Plan for the said property, Which is register with Sub Registrar-**Jaipur V** at Book No. 1, Vol. 650, Page 100, S. No. 2013397008567, and add. Book No. 1, Vol. 2598, Page no. 490-495 on dated 04/04/2013. **(Clear Copy of Map to be obtained)**
2. Photocopy of Death Certificate of **Mrs. Mr. Hanif (to be obtained)**
3. Photocopy of Legal Heirs Certificate of **Mr. Hanif (to be obtained)**
4. Photocopy of Registered **Released Deed dated 25/03/2013** executed by **Mr. Mohammed Sharif, Mr. Shafik, Mr. Mohammed Idrish & Mrs. Rihyan** in favour of **Mr. Mohammed Javed** for the said property, Which is register with Sub Registrar-**Jaipur V** at Book No. 1, Vol. 1570, Page 6, S. No. 202503019104738, and add. Book No. 1, Vol. 6276, Page no. 718-731 on dated 24/03/2025
5. Original NOC No. 1163 dated 27/03/2025 issued by Nagar Nigam Jaipur for

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the said property

6. Original Sale Agreement executed by **Mr. Mohammed Javed** in favour of **Mrs. Roshan Khatun W/o Mr. Rahul** for the said property (To Be Obtained)
7. Original Stamp undertaking Litigation pending on the said property from the **Mrs. Roshan Khatun W/o Mr. Rahul**. (To Be Obtained)

II. Documents to be collected by Piramal Capital & Housing Finance Limited at the time of Delivery of Pay Order(s)/Demand Draft(s) to the Seller(s)/ Borrower(s):

1. Original Registered **Patta 1163 dated 25/03/2013** issued by **Nagar Nigam, Jaipur** in favour of **Mr. Hanif** with Site Plan for the said property, Which is register with Sub Registrar-Jaipur V at Book No. 1, Vol. 650, Page 100, S. No. 2013397008567, and add. Book No. 1, Vol. 2598, Page no. 490-495 on dated 04/04/2013. **(Clear Copy of Map to be obtained)**
2. Original Registered **Released Deed dated 25/03/2013** executed by **Mr. Mohammed Sharif, Mr. Shafik, Mr. Mohammed Idrish & Mrs. Rihyan** in favour of **Mr. Mohammed Javed** for the said property, Which is register with Sub Registrar-Jaipur V at Book No. 1, Vol. 1570, Page 6, S. No. 202503019104738, and add. Book No. 1, Vol. 6276, Page no. 718-731 on dated 24/03/2025
3. Original Paper Publication regarding legal hairs and litigation for the said property.
4. Original NOC from Advocate regarding Paper Publication. (To Be Obtained)

The above documents are required before disbursement of the loan for creating valid mortgage.

I. DOCUMENTS TO BE COLLECTED BY PIRAMAL CAPITAL & HOUSING FINANCE LIMITED FOR CREATION OF EQUITABLE MORTGAGE OF THE SAID PROPERTY POST DISBURSEMENT.

1. Original Proposed Sale Deed to be executed by **Mr. Mohammed Javed** in favour of **Mrs. Roshan Khatun W/o Mr. Rahul** in respect of the said property. (To be Obtained)

NOTE:-TSR Release by Internal Approval and Technical Report

Thanking you

Yours faithfully,

(Gautam Kumar Sharma)
Advocate